

Superior Court (1984) 157 Cal.App.3d 159, 163-164.)

Defendants' demurrer to Plaintiff's cause of action for punitive damages is SUSTAINED with leave to amend. Leave to amend is being granted in that punitive damages have not been struck from the Complaint and may be raised in the proper mechanism in an amended complaint should they be warranted.

Uncertainty

" '[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.' " (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695.) " 'A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.' " (*Ibid.*) " '[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' " (*Ibid.*) "A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made." (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.)

Defendants argue that the Complaint fails for uncertainty because "the Complaint is wholly ambiguous and unintelligible as to Plaintiff's purported causes of action." (Demurrer, p. 12; Reply, pp. 8-9.) Plaintiff argues that "[u]ncertainty is a narrow, disfavored ground, reserved for pleadings so confusing the defendant cannot tell what it must respond to. . . That is not this Complaint." (Opposition, p. 8.)

The Court finds that although the Complaint here fails to allege facts sufficient to state certain causes of action, this is based on more of a failure to incorporate sufficient facts into the pleading and less as to ambiguities in the allegations actually made.

Defendants' demurrer to Plaintiff's Complaint on the basis of uncertainty is OVERRULED.

Ruling on the Demurrer

The Court **OVERRULES** Defendants' demurrer with respect to the argument regarding assignment of the claims herein, the argument regarding uncertainty, and the cause of action for rescission. The Court **SUSTAINS** Defendants' demurrer to the causes of action for breach of contract, breach of implied warranty, failure to pay arbitration fees, and punitive damages, with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

15. 9:00 AM CASE NUMBER: N26-0448
CASE NAME: CLAIM OF:RAYMOND HUDSON
*HEARING ON MINOR'S COMPROMISE
FILED BY: HUDSON, RACHEL
TENTATIVE RULING:

The Court has reviewed the submissions in the case but does not see any documentation of medical claims or recovery. Upon the filing of such documentation—assuming it supports the Petition—the Court will be prepared to grant the Petition.

16. 9:00 AM CASE NUMBER: N26-0855

CASE NAME: PETITION OF:JEFFERSON BORGES

HEARING IN RE:

FILED BY:

TENTATIVE RULING:

The Petition is **denied without prejudice** for lack of proof of service.

Courtroom Clerk's Calendar

Add on

17. 8:32 AM CASE NUMBER: C26-01186

CASE NAME: LARRY BUI VS. LYNNE BUI

***HEARING ON MOTION IN RE: MOTION TO RELATE AND CONSOLIDATE**

FILED BY: BUI, LYNNE A.

TENTATIVE RULING:

Larry Bui seeks to consolidate this action with the later filed MS26-0344 unlawful detainer action. In this earlier-filed action, Bui seeks to resolve complex issues of title that are intermingled with a Florida Bankruptcy action involving Lynne Bui. Defendant Sunny Behl, the Plaintiff in the unlawful detainer action, took possession of Lynne Bui's property fully aware of these encumbrances and title disputes. For that reason, this case is properly consolidated and Plaintiff's Motion is **GRANTED**.